



2026:DHC:8121-DB



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**% **Date of decision: 21.09.2026**# **CNR No. DLHC010615482025**+ **CUSAA 119/2025 & CM APPL. 53089/2025****M/S R. K. LOGISTICS**AppellantThrough: Mr. Ravi Shekhar Jha, Mr. Raj Datt,
Mr. Chandan & Mr. Mohit Kumar,
Advs.

versus

COMMISSIONER OF CUSTOMSRespondentThrough: Ms. Monica Benjamin, SSC with Ms.
Laiba Arif & Ms. Prerika Narang,
Advs.**CORAM:**
HON'BLE MR. JUSTICE AVNEESH JHINGAN
HON'BLE MS. JUSTICE SHAIL JAIN**AVNEESH JHINGAN, J. (ORAL)**

1. This appeal is filed under Section 130 of the Customs Act, 1962 (for short 'the Act') against final order no. 59921/2024 dated 23.12.2024 passed by the Customs, Excise and Service Tax Appellate Tribunal, Principal Bench, New Delhi (for brevity 'the tribunal') in customs appeal no. 50860/2021.

2. The brief facts are that the appellant is a proprietorship concern. On 02.11.2016, the appellant was granted a Customs Broker licence (hereinafter 'the licence'). Pursuant to proceedings initiated against the appellant, the respondent *vide* order dated 01.07.2020 revoked the licence, forfeited the



security deposit of Rs.5,00,000/- and imposed a penalty of Rs.50,000/- under Regulation 18 of the Customs Brokers Licensing Regulations, 2018. Thereafter, separate proceedings were initiated against the appellant for violation of regulation 10(n) of the 2018 Regulations culminating in the order dated 16.04.2021 whereby the licence was again revoked, the security deposit of Rs.5,00,000/- was forfeited and a penalty of Rs.50,000/- was imposed. The appellant challenged the order dated 16.04.2021 before the tribunal. The appeal was disposed of stating that the revocation of the licence had already been upheld in the appeal against order dated 01.07.2020. The issue of imposition of penalty under the order dated 16.04.2021 was not adjudicated. Hence, the present appeal.

3. The revocation of the licence and forfeiture of security *vide* order dated 01.07.2020 has already been upheld by this Court in CUSAA 120/2025 by order dated 21.09.2026 and needs no further dilation. Consequently, the issue of forfeiture of security *vide* order dated 16.04.2021 no longer survives.

4. The action of the respondent in revoking an already revoked licence is beyond the statutory provisions and results in multiplicity of litigation for the same action i.e. revocation of the licence which cannot be appreciated. In other words, even if there were more than one cause of action for revocation of the licence it should form part of the same proceedings. Once the licence had already been revoked, there was no occasion to pass a second order of revocation without prejudice to the earlier order.

5. The tribunal disposed of the appeal challenging the order dated 16.04.2021 by considering that the revocation of the licence had already been upheld. However, the issue of imposition of penalty *vide* order dated



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16.04.2021 was not adjudicated and need to be gone into despite the revocation having been upheld.

6. Consequently, the impugned order dated 23.12.2024 passed by the tribunal in customs appeal no. 50860/2021 is set aside and the matter is remanded to the tribunal to decide the issue of imposition of penalty *vide* order dated 16.04.2021 in accordance with law.

7. Pending application stands disposed of.

AVNEESH JHINGAN, J

SHAIL JAIN, J

SEPTEMBER 21, 2026

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Reportable: Yes